

# INTELLECTUAL PROPERTY

TRADE SECRETS

COPYRIGHTS

PATENTS

# What is Intellectual Property?

- Intellectual property refers to the work to which one has rights and for which one may apply for a patent, copyright, trademark, etc.





The importance of intellectual property was first recognized in the Paris Convention for the Protection of Industrial Property (1883) and the Berne Convention for the Protection of Literary and Artistic Works (1886). Both treaties are administered by the World Intellectual Property Organization (WIPO)



# Types Of Intellectual Property

- *INDUSTRIAL PROPERTY*
  - - Patents
  - - Trademarks
  - - Industrial Designs
  - - Geographical Indications
- *COPY RIGHTS*
  - - Work
  - - Art
  - - Design



# Benefits Of Intellectual Property

- ▶ IP rights provide protection against a competitor directly copying the idea.
- ▶ It helps in maintaining business long-term competitive edge.
- ▶ Registered IP ensures that entrepreneurs get all the financial benefits from their ideas.
- ▶ It helps convince financial institutions to invest in a business, enabling more money to be raised for development.
- ▶ Registered IP gives consumers confidence that products meet appropriate standards and quality.
- ▶ Ownership of the IP enables entrepreneurs to license or franchise ideas to others without risk.

**Intellectual Property covers four main areas:**

**I. Patents – Deals with how something works.**

**II. Designs – Deals with what something looks like.**

**III. Trade Marks – Deals with what name it is called with.**

**IV: Copyright – Deals with artistic or literary expression.**

# **What is a Patent?**

**A patent is given for an invention by the government to the inventor. This gives the inventor the authority to stop others for a limited period of time from copying, making, using, promoting, or selling the invention without the permission of the inventor.**

**When protection of the patent is given to the invention, the invention becomes the sole property of the inventor. This intellectual property like any other property or business asset can be purchased, traded, leased, or hired. Patents rights apply on territorial basis. Indian patents will give the inventor the rights only in India with the right to forbid others from importing the product that is patented into India.`**

# **In order to be Patentable, the invention must:**

- ▶ **Patient should be Brand New** – before the day when the application for the patent is filed, the patient should not have been made public in any way in any place in the world,
- ▶ **Involves an inventive step** –When the invention is compared with that what is already recognized, this invention should not be apparent to one who has good knowledge and experience of the subject.
- ▶ **Should be capable of industrial application** – The invention that is put up to be patented should be able to be used in some sort of industry. In other words, the invention should take the practical shape of an apparatus or device, like a product that has some kind of a new material or a new industrial method or mode of operation.



# **An invention cannot be patented if it is:**

- **A discovery;**
- **A scientific assumption or mathematical system;**
- **A philosophical creation, literature, historic, or artistic work;**
- **A pattern or style for implementation of a mental performance, playing a game or conducting business, the displaying of information or a software program.**

# **What rights does a patent give?**

**A patent gives the inventor the right to prevent others from utilizing the invention; instead, the inventor can prefer to allow others to use the invention under agreed terms. Also, a patent gives the inventor the authority to take legal action against those who could be impinging and damages can be claimed. An inventor does not require a patent so as to put an invention into practice, but after the invention is made public, then there will be no protection against others using the invention and the inventor would not be able to get a patent.**

The Intellectual Property Office would not make sure that others are not copying a patented invention. The responsibility is solely upon the inventor to take the needed actions to make sure an idea is not infringed. Once the invention is 'Granted' or in the public domain then any of the ideas cannot be reregistered.

# **What is a Trademark?**

**Trademarks are emblems of origins. They are employed to differentiate the goods and services of one merchant from another and can take many shapes such as words, logos, slogans, shapes, colours, sounds, etc.**

**Trademarks are filed for specific goods and services within single subjects which are known as classes. Others can file for identical or similar marks providing that it is different and an unconnected class.**

**A Trademark can last for an unlimited time period. In order for the continuation of the protection the Trademark must be:**

- **It must be utilized in commerce.**
- **The fees is paid as needed to keep it in force.**
- **It should not become generic like a noun or verb that is used in common usage.**
- **It should be labeled as a Trademark by ® in most of the countries.**

**The owner of the product should be sure that the selected trademark is not infringing someone else's and that they are free to use it. A free search can be done in the Business and IP Centre database that is directly linked to the Intellectual Property Office.**

**A decision needs to be made as to what type of goods or services that the owner wants to keep protected. Also, future plans should be thought over to make sure that the protection takes care of all the areas that the business might need.**

**The owner should make it absolutely sure that the trademark is utilized in the right way. A trademark is the mark which is used to identify the goods or service to the consumers and therefore any incorrect use of it could harm the reputation of the company that owns it. Letting a trademark to become a generic name such as aspirin, linoleum, escalator, etc., can result in the loss of the trademark. So the owner has to be very careful.**

**Once a trademark has been registered, the owner need to check to make sure that it is not infringed by having a look-alike trademark in the same classes and the owner's goods and services.**

**If there is someone who is infringing on the owner's trademark, then the owner should look for advice from a trademark attorney, so that proper action can be taken to halt the infringement or else negotiate on the owner's behalf to license the trademark. It is very rare that cases end up in court but that is the final authority of owning a trademark.**



# Registered Trademarks

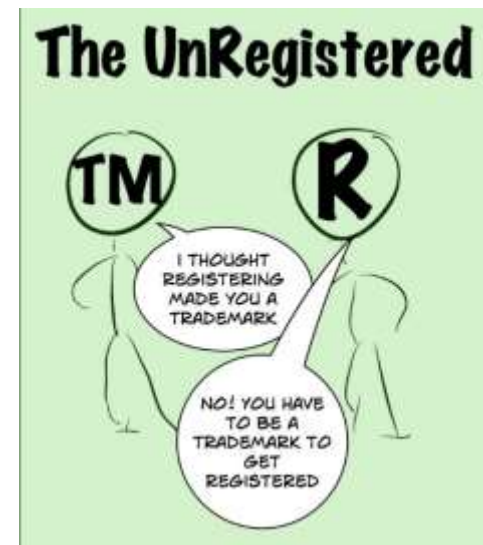
You can register your trademark with the [United States Patent and Trademark Office](#) (USPTO). There are several benefits of having a registered trademark:



1. Notice to public of your registered claim of ownership of the mark;
2. Legal presumption of ownership throughout the nation;
3. Legal protection from the infringement or unauthorized use of the trademark; and
4. Exclusive right to use the mark on or in connection with your goods and services listed in your registration.

# Unregistered Trademarks

An **unregistered trademark** does not benefit from the protection afforded to trademarks through registration as mentioned above. Unregistered trademarks receive common law trademark rights and can be protected under the Lanham Act. You can use the unregistered trademark symbol (™) on or in connection with your registered goods and/or services.



# Word Marks



A **word mark** is a distinct text-only typographic of the name of a company, institution, or product name used for purposes of identification and branding. It consists solely of words, letters, numbers, or a combination thereof. Note, the text of a word mark can be trademarked. When a word mark is federally registered, the standard registration symbol is <sup>®</sup>.

# Service Marks



A **service mark** is the same as a trademark, but it identifies a service rather than a product. When a service mark is federally registered, the standard registration symbol is ®. Before it is registered, the registration symbol is <sup>SM</sup>.

# Copyrights

A copyright is a legal form of protection for original works of authorship fixed in a tangible medium of expression which includes literary, dramatic, musical, and artist's works such as poetry, novels, movies, songs, computer software, and architecture.



# How to Obtain a Trademark or Copyright

As mentioned above, you can **register a trademark, service mark, or word mark** with the USPTO. First, you will need to search the trademark records to see if someone else is already using the mark. You can conduct the search using the [Trademark Electronic Search System \(TESS\)](#).



# TRADE SECRETS

A trade secret is

- (1) any information, including any formula, pattern, compilation, program, device, method, technique, or process, that
- (2) provides a business with a competitive advantage,
- (3) is not generally known by a company's current or potential competitors and cannot be readily discovered by them through legitimate means, and

# TRADE SECRETS

- Types of Information which can be protected
  - Sales and Marketing plans                      formulas
  - Customer lists and data                      recipe
  - software                      survey results
  - computer files
  - manufacturing techniques
- Disputes often arise when employees leave to join a competitor.
  - Violations can occur voluntarily or inadvertently.
    - Showing new employer presentation prepared for former employer to demonstrate skill.



# REASONABLE EFFORTS TO MAINTAIN SECURITY

- Court will not protect secrets unless owner does also.
- Owner must make reasonable efforts to protect information
- Courts will consider
  - Value of information      protection resources
  - how broadly info known inside and out.

# IMPROPER ACQUISITION

- ▶ THEFT

- ▶ MISREPRESENTATION

- ▶ BRIBERY

- ▶ BREACH OF CONTRACT

- ▶ ESPIONAGE

- ▶ BREACH OF CONFIDENTIALITY

- ▶ Dupont v. Christopher 431 F.2d 1012 (5th Cir.1970)  
Cert. Denied, 400 U.S. 1024

# LEGAL REMEDIES

- Court order preventing disclosure
- Money damages
- Punitive damages
- Criminal Charges
- Once secrets have become public they cease to be trade secrets. Best course is to prevent both improper and inadvertent disclosure

# PROTECTION PROGRAM

- Educate employees and provide guidance as to what constitutes a trade secret.
- Employee commitments
  - Preemployment Clearance
  - Confidentiality Agreements
  - Noncompetition Agreements

# PROTECTION PROGRAM

- Mark documents “Confidential”
- Disclose information on need to know basis
- Keep information on site
- Passwords and security codes
- Clean desk policy
- Avoid unsecure conversations. e.g. cellular phone, elevators, restaurants, airplanes.